

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Finch	Team: Squad #9	CCRB Case #: 201902824	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/06/2019 6:27 PM	Location of Incident: In front of 105 West 168th Street	Precinct: 44	18 Mo. SOL 9/6/2020	EO SOL 4/23/2021	
Date/Time CV Reported Mon, 04/01/2019 9:41 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 04/02/2019 9:41 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Sergio Delamota	03954	943137	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ariel Lora	883	955092	044 PCT
2. POM Kenny Victoria	21225	960051	044 PCT
3. SGT Michael Bowman	00818	939932	044 PCT
4. POM Jose Mercedes	00884	961948	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota stopped § 87(2)(b)	
B.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota stopped § 87(2)(b)	
C.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota stopped § 87(2)(b)	
D.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota searched the vehicle in which § 87(2)(b) was an occupant.	
E.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota interfered with § 87(2)(b)'s use of a recording device.	
F.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota refused to provide his name to § 87(2)(b)	
G.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota refused to provide his shield number to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
I.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota threatened to arrest § 87(2)(b).	
J.SGT Sergio Delamota	Force: Sergeant Sergio Delamota used physical force against § 87(2)(b)	
K.SGT Sergio Delamota	Discourtesy: Sergeant Sergio Delamota spoke discourteously to § 87(2)(b)	
L.SGT Sergio Delamota	Abuse: Sergeant Sergio Delamota threatened to arrest § 87(2)(b).	

Case Summary

On April 1, 2019, § 87(2)(b) filed this complaint in-person with the CCRB.

On March 6, 2019, at approximately 6:27 p.m., § 87(2)(b) was parked in a “No Parking” zone, in front of 105 West 168th Street in the Bronx, with his cousin, § 87(2)(b) and his friend, § 87(2)(b) Sergeant Sergio Delamota, Police Officer Jose Mercedes, Police Officer Ariel Lora and Police Officer Kenny Victoria, all of the 44th Precinct, exited an unmarked patrol car and approached § 87(2)(b)’s vehicle, which was parked with the engine running in a “No Parking” zone. Sgt. Delamota stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b) (**Allegations A, B, and C: Abuse of Authority – Stop:** § 87(2)(g)). Sgt. Delamota searched § 87(2)(b)’s vehicle (**Allegation D: Abuse of Authority – Vehicle search:** § 87(2)(g)). PO Victoria conducted a warrant check which revealed that § 87(2)(b) and § 87(2)(b) had active bench warrants. § 87(2)(b) began recording the interaction on his iPhone, but Sgt. Delamota seized § 87(2)(b)’s phone (**Allegation E: Abuse of Authority – Interference with recording:** § 87(2)(g)). Sgt. Delamota allegedly refused to provide his name and shield number to § 87(2)(b) (**Allegation F: Abuse of Authority – Refusal to provide name:** § 87(2)(g); **Allegation G: Abuse of Authority – Refusal to provide shield number:** § 87(2)(g), § 87(4-b), § 87(2)(b)).

§ 87(2)(b)’s friend, began video recording and approached the encounter. Sgt. Delamota threatened to arrest § 87(2)(b) (**Allegation I: Abuse of Authority – Threat of arrest:** § 87(2)(g)). After § 87(2)(b) was ordered back into his vehicle, he exited and approached Sgt. Delamota in the street. Sgt. Delamota used force against § 87(2)(b) (**Allegation J: Force – Physical force:** § 87(2)(g)). Sgt. Delamota said, “Bro, if you come that close to me, I’m gonna lock you up, get the fuck out of here” to § 87(2)(b) (**Allegation K: Discourtesy – Word:** § 87(2)(g); **Allegation L: Abuse of Authority – Threat of arrest:** § 87(2)(g)).

PO Victoria issued § 87(2)(b) a summons. § 87(2)(b) PO Mercedes issued § 87(2)(b) a summons. § 87(2)(b).
§ 87(2)(b), § 87(2)(a) 160.50

The investigation obtained Body Worn Camera footage and cell phone videos which captured this incident (Board Review 03, Board Review 04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Sergio Delamota stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Sergio Delamota stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Sergio Delamota stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Sergio Delamota searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)’s vehicle was searched by Sgt. Delamota and his officers after they approached the vehicle and ordered the occupants out.

According to Sgt. Delamota, as he approached § 87(2)(b)’s vehicle, he smelled a strong odor of marijuana emanating from the vehicle’s partially open windows (Board Review 09).

§ 87(2)(b) denied that any of the vehicle’s occupants had been smoking marijuana and denied that there was any marijuana in his vehicle.

§ 87(2)(b) and § 87(2)(b) could not be reached by the investigation.

At 02:30 (VLC timestamp) in Sgt. Delamota’s BWC video footage, Sgt. Delamota tells the occupants that they were “smoking weed” in the car, which they deny. At 4:30, as Sgt. Delamota searches the rear passenger seats, he states, “It smells like marijuana everywhere. They blew smoke out as we were walking up. There’s marijuana ashes right there. There’s a ziplock. It’s empty.” Given his quick movements, the camera does not clearly show what he is describing. At 05:30, as Sgt. Delamota searches the front passenger seat, he states, “Marijuana crumbs. Marijuana ashes.”

At 15:00, an officer is seen searching the trunk. (Board Review 08)

PO Mercedes issued § 87(2)(b) a summons § 87(2)(b).

§ 87(2)(b), § 87(2)(g)

The New York City Department of Transportation Traffic Rules, Section 4-08 (4) prohibits stopping a vehicle, attended or unattended, in an area in which parking is prohibited by signs or rules, except temporarily for the purpose of and while expeditiously receiving or discharging passengers, or loading or unloading property to or from the curb (Board Review 07). The smell of marijuana is sufficient to provide officers with probable cause to search a vehicle and its occupants. People v. Chestnut, 43 A.D. 2d 260 (1974) (Board Review 10). An officer can search a parked vehicle, without a warrant, if he detects an odor of marijuana emanating from the vehicle. People v. Norman, 142 AD3d 1107 (2016) (Board Review 17).

As § 87(2)(b) himself acknowledged, there was a “No Parking Anytime” sign governing the zone in which his vehicle was idling; § 87(2)(b), § 87(2)(g)

Allegation (E) Abuse of Authority: Sergeant Sergio Delamota interfered with § 87(2)(b)'s use of a recording device.

According to § 87(2)(b) after he first reentered his vehicle, he began recording the officers on his iPhone while sitting in his driver seat. Sgt. Delamota immediately grabbed § 87(2)(b)'s iPhone from his hand and ended the recording that was in-progress.

At 08:30 (VLC timestamp) into Sgt. Delamota's BWC video, after he allows § 87(2)(b) to reenter his vehicle, § 87(2)(b) states, “I’m grabbing my phone.” Sgt. Delamota responds, “Do me a favor, just don’t go in your pockets.” § 87(2)(b) says, “I’m not.” Sgt. Delamota says, “I want you to not grab anything” and takes § 87(2)(b)'s phone from his hands. § 87(2)(b) says, “Yo § 87(2)(b) he just grabbed my phone” and Sgt. Delamota responds, “I want you to have your hands empty.” The video does not show the screen of § 87(2)(b)'s phone, and thus does not depict if Sgt. Delamota ended an in-progress video recording. During this portion of the incident, the other two occupants of the vehicle remain behind the vehicle with the other officers, after being told they were being placed under arrest for open bench warrants. (Board Review 08)

The cell phone videos provided by § 87(2)(b) do not depict the time period in which Sgt. Delamota seized § 87(2)(b)'s phone (Board Review 03).

Sgt. Delamota did not recall whether he grabbed § 87(2)(b)'s phone from him but stated that he was consistently adamant that the individuals in the car keep their hands empty during the interaction for their safety and the officers' safety. Sgt. Delamota denied deliberately stopping a recording on § 87(2)(b)'s phone.

§ 87(2)(b), § 87(2)(g)

According to NYPD Patrol Guide Procedure 203-29, individuals have a right to lawfully

observe and/or record police activity. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public or when a violation of law is committed by the individual who is videotaping (Board Review 19).

§ 87(2)(b), § 87(2)(g)

There were multiple bystanders and two individuals who were still in the process of being placed under arrest. § 87(2)(b), § 87(2)(g)

Allegation (F) Abuse of Authority: Sergeant Sergio Delamota refused to provide his name to

§ 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Sergio Delamota refused to provide his shield number to § 87(2)(b)

§ 87(2)(g), § 87(4-b)

According to § 87(2)(b) when the officers were returning to their vehicles after the vehicle stop concluded, § 87(2)(b) exited his vehicle and asked all four officers three to five times for their names and shield badge numbers. None of the officers provided their names or badge numbers to § 87(2)(b) (Board Review 01)

As depicted in Sgt. Delamota's BWC video at VLC timestamp 12:10, § 87(2)(b) asks Sgt. Delamota for "everybody's badge numbers." (Board Review 08). PO Lora, PO Mercedes and PO Victoria stand in the street nearby. Sgt. Delamota verbally provides his name and shield number to § 87(2)(b). At 16:10, § 87(2)(b) later approaches Sgt. Delamota in the street and says he wants "badge numbers." Sgt. Delamota again verbally states his name and shield number to § 87(2)(b) multiple times, then says, repeatedly "Let's go" to the remaining officers who return to their unmarked patrol car. At no point in any of the BWC videos does § 87(2)(b) ask PO Lora or PO Mercedes directly for their names or shield numbers (Board Review 08).

The cell phone video footage provided by § 87(2)(b) does not depict him asking PO Lora or PO Mercedes for their names or shield numbers at any point (Board Review 05).

As depicted in the BWC video, § 87(2)(b) requested "names and shield numbers" to Sgt. Delamota, and in response Sgt. Delamota verbally provided his name and shield number multiple times to § 87(2)(b) § 87(2)(g)

§ 87(2)(b), § 87(2)(g), § 87(4-b)

Allegation (I) Abuse of Authority: Sergeant Sergio Delamota threatened to arrest § 87(2)(b)

Beginning at 8:45 in Sgt. Delamota's BWC video, § 87(2)(b) begins to scream out, § 87(2)(b) repeatedly, referring to an individual who is standing on the sidewalk, recording the incident. The individual walks up and down the sidewalk, between § 87(2)(b)'s vehicle and the police vehicle containing the arrested individuals, asking the officers' questions about their actions. At 15:00, the individual walks towards the officers as they are searching § 87(2)(b)'s trunk, and

once again attempts to engage the officers; at which point Sgt. Delamota says, "I'm not going to tell you again. Ten feet away or you're going in cuffs. Ten feet away, otherwise you're getting arrested" (Board Review 08).

§ 87(2)(b) identified § 87(2)(b) as a friend of his.

A person is guilty of obstructing governmental administration (OGA) when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or any independently unlawful act. N.Y. Penal Law § 195.05 (Board Review 13).

The BWC video depicts § 87(2)(b) approaching the police encounter while it was on-going and attempting to engage the officers while they were in the middle of conducting their investigation. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (J) Force: Sergeant Sergio Delamota used physical force against § 87(2)(b)

Allegation (K) Discourtesy: Sergeant Sergio Delamota spoke discourteously to § 87(2)(b)

Allegation (L) Abuse of Authority: Sergeant Sergio Delamota threatened to arrest § 87(2)(b)

§ 87(2)(b) -

It is undisputed that after Sgt. Delamota ordered § 87(2)(b) into his vehicle and informed him that he was free to leave, § 87(2)(b) re-exited his vehicle and approached the officers', who were attempting to leave the scene with § 87(2)(b) and § 87(2)(b) who were under arrest.

According to § 87(2)(b) after he approached Sgt. Delamota to ask for the officers' names and shield numbers, Sgt. Delamota stepped out of the unmarked police vehicle, approached § 87(2)(b) gripped him by the collar of § 87(2)(b)'s shirt with his right hand, and stated, "You are too close, stand back." § 87(2)(b) responded by stumbling backward and stating that he would comply.

In Sgt. Delamota's BWC video at VLC timestamp 16:10, after Sgt. Delamota provides his name and badge number to § 87(2)(b), § 87(2)(b) continues to walk towards Sgt. Delamota, within arms' reach (Board Review 08). Sgt. Delamota extends his arm towards § 87(2)(b) and says, "Bro, if you come that close to me, I'm gonna lock you up. Get the fuck out of here. Let's go." The video does not clearly show the level of physical contact Sgt. Delamota made with § 87(2)(b), or if Sgt. Delamota gripped § 87(2)(b)'s collar.

According to Sgt. Delamota, he did not recall if he touched § 87(2)(b). Sgt. Delamota stated that he was surprised and frightened, and he felt threatened by § 87(2)(b)'s approach. He used discourteous language because he was "scared and frightened" of § 87(2)(b) who Sgt. Delamota noted was taller than himself. He intended his demeanor to be forceful.

While police officers are held to a high standard of conduct, traditional rules of etiquette cannot be applied to stressful law enforcement situations. Disciplinary Case 2013-10143 (Board Review 14). According to the NYPD Patrol Guide Procedure Section 221-01, force may be used when it is reasonable to ensure the safety of a member of the service. In all circumstances, any application or use of force must be reasonable under the circumstances. "The reasonableness of the use of force is based upon the totality of the circumstances known by the MOS at the time of the use of force." (Board Review 20)

A person is guilty of obstructing governmental administration (OGA) when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or any independently unlawful act. N.Y. Penal Law § 195.05 (Board Review 13).

Both § 87(2)(b) and Sgt. Delamota indicated that § 87(2)(b) exited his vehicle after officers ordered him to remain inside. The BWC video shows that a brief physical encounter took place when § 87(2)(b) reached Sgt. Delamota, and Sgt. Delamota testified to extending his arm towards § 87(2)(b) to stop his approach. § 87(2)(g)

§ 87(2)(b) came within inches of Sgt. Delamota, after he was previously ordered to return to his vehicle, as officers were trying to leave the scene with two arrested individuals. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two prior CCRB complaint and has been named as a victim of 18 allegations:
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- § 87(2)(b) has been a party to one prior CCRB complaint:
 - § 87(2)(b)
- Sgt. Delamota has been a member-of-service for 13 years and has been a subject in nine CCRB complaints and 20 allegations, three of which were substantiated.
 - In case #20120195, the Board substantiated a stop, frisk and search of person allegations and recommended Charges. After trial, the NYPD imposed a penalty of three vacation days.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this case.
- As of May 5, 2020, there has been no Notice of Claim filed regarding this incident with the NYC Comptroller's Office (Board Review 15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 9

Investigator: Greg Finch
Signature

Inv. Greg Finch
Print Title & Name

08/14/2020
Date

Squad Leader: Monique West IM Monique West 8/17/2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date